

D11 - APPLICATION NOTICE

Application notice

To be completed by the relevant party	
Name of court Royal Courts of Justice	Case no. <u>BV20D01752</u>
Name of Petitioner/Applicant Nadia Zahmoul	
Name of Respondent Karim Nouredine Zahmoul	
Name of Co-Respondent (if applicable)	
Solicitor's fee account no.	
Help with Fees – Ref no. (if applicable) – –	
H	W
F	

If completing this form by hand, please use **black ink and BLOCK CAPITAL LETTERS** and tick the boxes that apply.

1. Please state your name or, if you are a solicitor, the name of your firm.

Nadia Zahmoul

2. Are you the ☐Petitioner ☒Applicant ☐Respondent ☐Co-Respondent ☐Solicitor in the main proceedings, or

Other?
(if Other, please specify)

If you are a solicitor, whom do you represent?

Please see attached draft order.



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3. What order are you asking the court to make and why?

Please attach a draft copy of the order you are applying for.

Please see attached draft order.

This application may be considered by a judge on the information you have set out in your application notice. The judge may make an order on that information, without a hearing. However, any party who objects to an order made in this way may apply to the court within 7 days of it being made, for a hearing, at which all parties can attend, when the application will be reconsidered.

1. Are there any reasons why this application should not be dealt with on paper by a judge?

☐ Yes. It should not be dealt with on paper by a judge because

☒ No

Domestic Abuse Act 2021

Provisions in the Domestic Abuse Act 2021 have the effect of preventing an individual accused of abuse from questioning in person a party or witness in the case who is the victim of the abuse, and also prevents a victim of abuse from questioning in person the accused individual in specified circumstances.

If the court directs that the proceedings be listed for a hearing where oral evidence may be given, form **EX740** (person making the abuse accusation) or form **EX741** (person accused of abuse) 'Application and information needed by the court to consider whether to prevent (prohibit) questioning (cross-examination) in person' may need to be completed so that the court can consider whether questioning in person should be prevented. The court will send the appropriate form with the court order.

Note 3: Set out what order you are applying for and why; e.g. to adjourn the hearing because..., to apply for leave to issue my divorce application without my marriage certificate because... etc. If you are applying to vary an existing order or to re-activate proceedings you should enter the details here. A draft copy of any order you are applying for must be attached to your application. The draft should state the amount of any costs to be paid by the other party and a brief calculation of how it was arrived at.

Note 4:
The court will only deal with the application 'without a hearing' in the following circumstances:

- where all the parties agree to the terms of the order being asked for;
- where all the parties agree that the court should deal with the application without a hearing; or
- where the court does not consider that a hearing would be appropriate.

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For Deemed Service applications for divorce, Questions 5–9 are not required. See guidance notes for more information.

2. Are there any reasons why this application should not be dealt with at a telephone hearing?

☒ Yes. This hearing should not be dealt with at a telephone hearing because

The applicant has impaired hearing.
This application can be dealt with in writing.

☐ No

3. How long do you think the hearing will last?

hours minutes

4. Is this time estimate agreed by all parties?

☐ Yes

☒ No

5. Give details of any fixed hearing date or period.

. .
Final Hearing took place before His Lordship Justice MacDonald from
19th to 28th February 2024.

6. Does this application need to be heard by a specific judge/level of judge?

☒ Yes. This case is reserved to **His Lordship Justice MacDonald**

☐ No

Deemed Service application

(These applications do not require a hearing.)

The applicant can apply to the court for an application for deemed service when they have evidence the respondent has received the divorce application but has not filed an acknowledgment of service with the court. Evidence can be written confirmation such as a letter, email, or text.

Note 5: Indicate in a covering letter any dates that you are unavailable to attend within the next six weeks.

Telephone hearings are only available in applications where at least one of the parties involved in the case is legally represented.

Not all applications will be suitable for a telephone hearing and the court may refuse your request

Note 6: If you do not know how long the hearing will take do not guess, instead leave these boxes blank.

Note 7: If your case has already been allocated a hearing date or trial period please insert details of those dates in the box.

Note 8: Enter the details if there is a requirement for your case to be heard

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7. Who should be served with this application?

Give names, addresses, and email addresses: (If necessary, please continue on a separate sheet.

Mr. Karim Noureddine Zahmoul
c/o Crisp & Co
No 1 Poultry
London EC2R 8EJ

Note 10: Please indicate in the box provided who you want the court to send a copy of the application to.

8. What information will you be relying on?

- ☒ the attached statement.
- ☐ the divorce/dissolution/nullity/(judicial) separation application.
- ☐ the statement in support of the divorce/dissolution/nullity/(judicial) separation.
- ☐ the evidence set out in the box below:

(If necessary, please continue on a separate sheet)

Please see Affidavit in separate sheet.

Note 11: In this section please set out the information you want the court to take into account in support of the application you are making. If you wish to rely on:

- **a witness statement,** tick the first box and attach the statement to the application notice. A witness statement form is available on request from the court office.
- **a statement of case,** tick the second box if you intend to rely on your particulars of claim or defence in support of your application.
- **written evidence on this form,** tick the fourth box and enter details in the space provided. You must also complete the statement of truth. Proceedings for contempt of court may be brought against a person who signs a statement of truth without an honest belief in its truth.

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this form and any continuation sheets are true.

☐ **The applicant** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the applicant to sign this statement.

☐ **The respondent** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the respondent to sign this statement.

Signature

N. Zahmoul.

☒ Applicant

☐ Respondent

☐ Applicant's legal representative (as defined by FPR 2.3(1))

☐ Respondent's legal representative (as defined by FPR 2.3(1))

Date

Day

7th

Month

03

Year

2024

Full name

Nadia Zahmoul

Name of the legal representative's firm

Acting in Person

If signing on behalf of firm or company give position or office held

Address details for service of documents

Please only complete this section if you wish to change your address for service. The court will use the address for service you provided in your divorce, dissolution or (judicial) separation proceedings if you do not provide one here.

Do you wish to keep your contact details confidential from your spouse or civil partner?

☐ Yes. Please complete the separate **C8** form with your details in order to do this.

☒ No

If you want to keep your contact details confidential, **do not complete this question**. Please complete form **C8**.

Building and street

3093 Arrowhead Rd

Second line of address

Town or city

Teton Village

County (optional)

Wyoming

Country

U.S.A.

Postcode

8 3 0 2 5

Email address

N a d i a @ r o s e k r o s s
.
c o m

Phone number (optional)

0 7 9 1 3 3 2 8 6 1 5

If the court needs to contact you, it will be able to do so more quickly if you provide your email address and phone number.

The email address should not be the same as the one given for your husband/ wife/civil partner.

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Court fee

What you need to pay

the court fee is

£167

How to pay the court fee

☐ I have not included payment because

☐ I have applied for Help with Fees online and my reference number is

H	W	F																	
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☐ I am applying for Help with Fees, see attached form **EX160**

☐ Other – please explain why

☒ **A debit or credit card payment**

☒ I will pay over the phone.

☐ please email me details on how to pay, my email address is

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☐ I attach a **cheque or postal order**, made payable to 'HMCTS'

☒ **Fee account details – for use by legal professionals**

P	B	A	0	0	9	4	3	0	3
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Your reference (if

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Please send your completed application and copies to the court that is managing your case.

The addresses can be found here:

<https://www.find-court-tribunal.service.gov.uk>

Court fee

You can find the current fee in leaflet EX50 Civil and Family Court Fees which can be downloaded from:

<https://www.gov.uk/government/collections/court-and-tribunal-forms>

If you cannot afford the court fee

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income.

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

A debit or credit card payment. To pay the court fee over the phone, you should call the Court that is currently managing your case.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

Summary

This is not an application to reopen the evidence, nor is it an application to submit new evidence. In fact, this is not even an application because I am not seeking anything. This is a statement I am addressing to the Court because the respondent has made a mockery of the court process and his brazen arrogance and contempt for court were prevalent even at the Final Hearing.

In this note, I will argue and demonstrate that the respondent made false representations under oath during the Final Hearing, and intentionally misled the Court. Furthermore, he instructed his counsel to make statements which he knew to be false. I don't need the approval of the respondent's legal representatives because I am not asking to reopen the evidence. I am asking the Court to recall what the respondent said last week and compare it to the facts. Nothing more.

In this statement, I will demonstrate that the respondent was dishonest at the trial, he intentionally misled the Court, made false statements under oath, mismarked and misreported assets on form ES2, and continued to do so until the very end of these proceedings. Not even the solemnity of the Final Hearing, the witness stand, or the immense privilege of addressing the Court dampened his vindictiveness, his malevolence, and his spiteful determination to "punish" me. He has shown a complete lack of moral and human decency.

Oxus SPAC: False Representations at the Final Hearing (19th – 28th February, 2024)

The ES2 asset schedule the respondent submitted for the Final Hearing identifies Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares as of 19th February 2024.

This is a false representation.

The respondent instructed his counsel to state in closing submissions at the Final Hearing that "the Oxus shares are worth nothing".

This is false representation.

There are **three key dates** which determine the value of the respondent's Oxus shares: the Grant date, the Trigger date, and the Lock-Up period.

Please note a very important point: the critical difference between Vesting Period vs Lock-Up Period is the legal ownership of the asset. Unvested shares are securities for which one does not have legal ownership. Legal economic ownership accrues incrementally over time as the shares vest. By contrast, Lock-Up Period applies to shares which are already fully owned by the individual. The respondent has full ownership of the 50,000 shares in Oxus. He may be restricted as to when he can sell them, but there is no question that he has full legal ownership of the shares as of the Grant date,

and the shares became valuable on the date of the Business Combination.

1. The Founders shares were granted to the respondent on 7th June 2022

The following paragraph is an excerpt from page 340 of the SEC Proxy Statement and Prospectus dated 16 January 2024 which is included in the exhibits to this application.

*“On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share.** The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model”.*

The following paragraph is an excerpt from page 30 of the SEC Proxy Statement and Prospectus dated 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3).

*“The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares”.*

2. ... Subject to a Performance Condition (i.e. the occurrence of a Business Combination).

Thus, the trigger for assigning a fair value to the Founders shares (using Monte Carlo or Black Scholes simulation models) is the Performance Condition, i.e. the closing of the Business Combination which occurred on **7th February 2024**. If the merger transaction does not close, the Founders shares become worthless. If the merger transaction closes, then the Founders shares become valuable, and their fair market value can be calculated every day and marked-to-market as evidenced in the company's prospectus and SEC filings.

The Business Combination was consummated on 7th February 2024 and on 8th February 2024 Newco began trading on Nasdaq under the ticker symbol BRLS.

Fig. 1 below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and

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investment power with respect to all shares beneficially owned by them. The following table *does not reflect record or beneficial ownership of Oxus' warrants* because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

(1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.

(2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.

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- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company ("Meteora Capital") with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the "Meteora Funds"); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the "Funds"), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the "Adviser"). Ari Glass is the Managing Member of the Adviser. Certain subadvisors ("Subadvisors") have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.

3. Third Key Date: Lock-Up Agreements

The following paragraph is an extract from Form 8-K filed on 7th February 2024 with the SEC. It defines the Lock-Up periods as follows:

*"At Closing, the holders entered into Lock-Up Agreements, pursuant to which (A) 50% of the New Borealis Common Shares held by either a director, officer, or 5% or greater holder party to such agreements (the "**Restricted Securities**") will be locked-up during the period commencing from Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of New Borealis Common Shares equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from Closing and ending on 12 months after the date of Closing, subject to certain specifications and exceptions".*

To sum up, the trigger dates are as follows:

- a) Grant date: 7th June 2022
- b) Shares become valuable on Merger date: 7th February 2024
- c) Shares can be sold according to the Lock-Up schedule.

Conclusion:

On 19th February 2024 when the Final Hearing for BV20D01752 started, the respondent knew that the value of the Oxus shares was NOT zero because the Business Combination had already been consummated on 7th February 2024, and because 7th February comes before 19th February on the timeline.

On 19th February 2024, it was wrong on the part of the respondent to instruct his counsel to state in her

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submissions that the “Oxus shares are worth nothing” because at that time, their fair market value was approximately \$0.5 million depending on which valuation model is used (Monte Carlo, Black Schole).

Lastly, and in order to pre-empt any future useless and costly back-and-forth and waste of time, I would like to reiterate that the Lock-Up period has nothing to do with the value of the shares just in case the respondent is tempted to argue that he assigned a value of zero to the shares because of the Lock-Up period.

I attach in enclosures a timeline and the SEC Prospectus filed on 16 January 2024.

The Oxus shares are worth approximately \$0.5 million, and I would like to take this opportunity to tell the Court that this dishonest conduct is permeating everything in the financial remedies and despite my relentless work around the clock for four years, it is humanly impossible to unwind every single asset, bank account, tax computation, crypto wallet, etc...It is an impossible task, the resources are on his side and he controls the assets, the information, and the unknowns.

Date	SEC Document Type	Description of Document	Applicant's Comments
2021			
4/1/2021	Form S-1	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share exchange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, referred to as "Target Business". This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share	
8/19/2021	Form S-1 (1st amendment)	Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
9/2/2021	Nasdaq Form 8-A 12 (b)	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of \$0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50.	
9/2/2021	SEC Notice of Effectiveness of Form S-1		
9/2/2021	Pursuant to SEC Rule 424 (b) (4)	PROSPECTUS	
02/09/2021 (reported 9 sept 2021)	Form 8-K	On 8 Sept 2021 the Cie raised \$150m in a public offering. A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.	
08-Sep-21	Form 8-K	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of \$10.00 per Unit, generating gross proceeds of \$150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of \$1.00 per Private Placement Warrant, generating gross proceeds of \$8,400,000 (the "Private Placement"). A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their exercise of the over-allotment option in full and purchased 2,250,000 additional Units at \$10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of \$22,500,000	
2022			
01/06/2022	SEC-Form 8-K	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/06/2022	Exhibit 24.1 to SEC-Form 8-K	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its hue and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8-K Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
06/06/2022	Letter from HFC to Withers	<i>My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.'</i>	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	<i>My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.'</i>	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	Increase in Net Worth of \$500,000 despite claim that he "may receive shares in the company subject to its performance." This is not a performance bonus, this is a joining bonus and it is not contingent on performance benchmarks.
2023			
23/02/2023	Reg FD	Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/03/2023	SEC-Form 8-K	EXTRAORDINARY GENERAL MEETING. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from March 8, 2023 to December 8, 2023 , or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	SEC-Form S-4	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933 PROXY STATEMENT AND PROSPECTUS	
13/11/2023	SEC-Form S-4 (2nd amendment)	BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,657,500 based on the closing price of Class A Shares of \$11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares; LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.	
2024			
16/01/2024	Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "ProIndustry Regulatory Authority";	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	

EDGAR Entity Landing Page

Form type	Form description	Filing date	Reporting date
4	Statement of changes in beneficial ownership of securities	2024-02-29	2024-02-28
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-13	2024-02-09
3	Initial statement of beneficial ownership of securities	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
8-K	Current report	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-09	
25-NSE	Notification filed by national security exchange to report the removal from listing and registration of matured, redeemed or retired securities	2024-02-07	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-07	
425	Prospectuses and communications, business combinations	2024-02-02	

8-K	Current report	2024-02-02	2024-02-02
425	Prospectuses and communications, business combinations	2024-01-17	
EFFECT	Notice of Effectiveness	2024-01-16	
424B3	Prospectus [Rule 424(b)(3)]	2024-01-16	
CORRESP	Correspondence	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-05	
S-4/A	Registration of securities, business combinations - amendment	2023-12-26	
CORRESP	Correspondence	2023-12-22	
8-K	Current report	2023-12-07	2023-12-05
UPLOAD	SEC-generated letter	2023-11-24	
DEF 14A	Other definitive proxy statements	2023-11-20	2023-12-05
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-11-20	2023-09-30
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-11-14	2023-09-30
CORRESP	Correspondence	2023-11-13	
S-4/A	Registration of securities, business combinations - amendment	2023-11-13	
UPLOAD	SEC-generated letter	2023-11-09	
PRE 14A	Other preliminary proxy statements	2023-11-08	2023-11-07
S-4/A	Registration of securities, business combinations - amendment	2023-10-24	
CORRESP	Correspondence	2023-10-23	
8-K	Current report	2023-10-06	2023-10-02
UPLOAD	SEC-generated letter	2023-09-11	
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-08-18	2023-06-30
425	Prospectuses and communications, business combinations	2023-08-17	
8-K	Current report	2023-08-17	2023-08-11
425	Prospectuses and communications, business combinations	2023-08-16	
8-K	Current report	2023-08-16	2023-08-16
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-08-15	2023-06-30
S-4	Registration of securities, business combinations	2023-08-14	
8-K	Current report	2023-06-13	2023-06-12

10-Q	Quarterly report [Sections 13 or 15(d)]	2023-05-22	2023-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-05-12	2023-03-31
4	Statement of changes in beneficial ownership of securities	2023-04-14	2023-04-12
8-K	Current report	2023-04-12	2023-04-05
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-11	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-05	
3	Initial statement of beneficial ownership of securities	2023-04-05	2023-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2023-03-31	2022-12-31
425	Prospectuses and communications, business combinations	2023-03-03	
8-K	Current report	2023-03-03	2023-03-02
425	Prospectuses and communications, business combinations	2023-03-01	
8-K	Current report	2023-03-01	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-28	
8-K	Current report	2023-02-28	2023-02-28
425	Prospectuses and communications, business combinations	2023-02-24	
8-K/A	Current report - amendment	2023-02-24	2023-02-23
8-K	Current report	2023-02-24	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-24	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-02-13	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-10	
DEF 14A	Other definitive proxy statements	2023-02-10	2023-02-28
UPLOAD	SEC-generated letter	2023-02-09	
PRER14A	Preliminary Proxy Soliciting materials	2023-02-07	
PRE 14A	Other preliminary proxy statements	2023-01-30	2023-01-27
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-11-14	2022-09-30
8-K	Current report	2022-09-14	2022-09-08
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-08-02	2022-06-30
3	Initial statement of beneficial ownership of securities	2022-06-09	2022-06-07
8-K	Current report	2022-06-06	2022-05-31

10-Q	Quarterly report [Sections 13 or 15(d)]	2022-05-23	2022-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2022-05-16	2022-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2022-03-31	2021-12-31
4	Statement of changes in beneficial ownership of securities	2022-03-10	2022-03-09
3	Initial statement of beneficial ownership of securities	2022-03-09	2022-03-09
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-10	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-03	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-12-13	
10-Q	Quarterly report [Sections 13 or 15(d)]	2021-11-15	2021-09-30
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-09-20	
8-K	Current report	2021-09-15	2021-09-08
8-K	Current report	2021-09-09	2021-09-02
424B4	Prospectus [Rule 424(b)(4)]	2021-09-07	
EFFECT	Notice of Effectiveness	2021-09-02	
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
CERT	Form - CERT	2021-09-02	
8-A12B	Registration of securities [Section 12(b)]	2021-09-02	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-19	
S-1/A	General form for registration of securities under the Securities Act of 1933 - amendment	2021-08-19	
UPLOAD	SEC-generated letter	2021-08-12	
S-1	General form for registration of securities under the Securities Act of 1933	2021-07-27	

CORRESP	Correspondence	2021-07-26	
UPLOAD	SEC-generated letter	2021-04-29	
DRS	Draft Registration Statement	2021-04-02	

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

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The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

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Directors and Officers

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

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Number and Terms of Office of Officers and Directors

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

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Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

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Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

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Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd. ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*

Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or**

\$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.